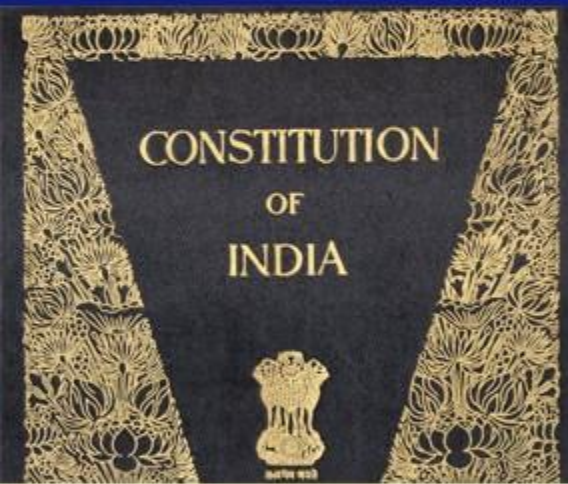


INDIAN POLITY



MODULE - 24

CITIZENSHIP
ACQUISITION OF CITIZENSHIP

INDIAN POLITY

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF CITIZENSHIP IN INDIA

QUICK SUMMARY

ARTICLE	PROVISIONS IN SHORT
5	Persons domiciled in India.
6	Persons migrated from Pakistan.
7	Persons migrated to Pakistan but later returned
8	Persons of Indian origin residing outside India.
9	Persons voluntarily acquiring citizenship of a foreign State not to be citizens.
10	Continuance of the rights of citizenship.
11	Parliament to regulate the right of citizenship by law.

ACQUISITION OF CITIZENSHIP (AFTER JANUARY 26, 1950)

The Citizenship Act, 1955 provides for acquisition and loss of citizenship after the commencement of the Constitution. The various modes of acquisition of citizenship prescribed by the Citizenship Act, 1955, are as follows:

- 1 CITIZENSHIP BY BIRTH
- 2 CITIZENSHIP BY DESCENT
- 3 CITIZENSHIP BY REGISTRATION
- 4 CITIZENSHIP BY NATURALISATION
- 5 CITIZENSHIP BY INCORPORATION
OF TERRITORY

ACQUISITION OF CITIZENSHIP

1

CITIZENSHIP BY BIRTH

A person born in India

Is a citizen of India

Conditions, if any

On or after January 26, 1950, but
before 1st July 1987

Irrespective of the nationality of his
parents.

On or after 1st day of July 1987 but
before the commencement of the
Citizenship (Amendment) Act, 2003

Only if either of whose parents is a
citizen of India at the time of his
birth.

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ACQUISITION OF CITIZENSHIP

1

CITIZENSHIP BY BIRTH

A person born in India

Is a citizen of India

Conditions, if any

On or after the commencement of the Citizenship (Amendment) Act, 2003 (Dec 3rd, 2004)

1. Both of his parents are citizen of India.

OR

2. One of whose parents is a citizen of India and the other is not an illegal migrant at the time of his birth.

ACQUISITION OF CITIZENSHIP

1 CITIZENSHIP BY BIRTH

A person born in India

Is NOT a citizen of India

Conditions, if any

However a person SHALL NOT BE A CITIZEN OF INDIA BY VIRTUE OF MERE BIRTH if at the time of his birth



1. Either his father or mother possesses such immunity from suits and legal process as is accorded to an **envoy of a foreign sovereign power**.

OR

2. His father or mother is an **enemy alien** and the birth occurs in a place then under occupation by the enemy.

ACQUISITION OF CITIZENSHIP

2 CITIZENSHIP BY DESCENT

**A person born outside
India**

Is a citizen of India

Conditions, if any

On or after January 26, 1950, but
before 10th December 1992

If his father was a citizen of India at
the time of his birth

On or after the 10th day of
December, 1992

If either of his parents is a citizen of
India at the time of his birth

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ACQUISITION OF CITIZENSHIP

2

CITIZENSHIP BY DESCENT

A person born outside
India

Shall NOT be a
citizen of India

Conditions, if any

On or after the 3rd December 2004

Unless and until his birth is registered
at an Indian consulate within one year
of the date of birth

Further, a minor who is a citizen of
India by virtue of descent and is also
a citizen of any other Country shall
cease to be a citizen of India if he
does not renounce the citizenship or
nationality of another Country within
six months of attaining full age.

ACQUISITION OF CITIZENSHIP

3 CITIZENSHIP BY REGISTRATION

Several classes of persons (who have not otherwise acquired Indian Citizenship) can **acquire Indian Citizenship by registering themselves to that effect before the prescribed authority.**

Example:

- Persons of Indian origin who are ordinarily resident in India and have been so resident for seven years immediately before making the application for registration;
- Persons who are married to citizens of India;
- A person of full age and capacity whose parents are registered as citizens of India;etc.

ACQUISITION OF CITIZENSHIP

3 CITIZENSHIP BY NATURALIZATION

Following qualifications necessary for granting certificate of naturalisation:

Not a citizen of any country where citizens of India are prevented from becoming subjects or citizens of that country by naturalization

Willingness to renounce his native citizenship, if his Indian citizenship is approved

Resided or been in government service for 12 months preceding his date of application & such other residential/service clause for a period of preceding 14 years

Possesses good character.

Adequate knowledge of a language specified in the Eighth Schedule to the Constitution

Intends to reside in India, or to enter into or continue in, service under a Government in India or under an international organization of which India is a member

ACQUISITION OF CITIZENSHIP

4 CITIZENSHIP BY NATURALIZATION

1 The Central Government may, on an application, grant a certificate of naturalization to any person (not being an illegal migrant) **if he possesses the following qualifications:**

a That he is not a subject or citizen of any country where citizens of India are prevented from becoming subjects or citizens of that country by naturalization.

b That he is a citizen of any country, he undertakes to renounce the citizenship of that country in the event of his application for Indian citizenship being accepted

ACQUISITION OF CITIZENSHIP

4 CITIZENSHIP BY NATURALIZATION

c That he has either resided in India or been in the service of a Government in India or partly the one and partly the other, **throughout the period of twelve months immediately preceding the date of the application.**

d That during the fourteen years immediately preceding the said period of twelve months, he has either resided in India or been in the service of a Government in India or partly the one and partly the other for periods amounting in the aggregate to not less than eleven years.

***Proposed to be changed by
Citizenship Amendment Bill 2016:
The Bill relaxes this 11 year
requirement to six years for
persons belonging to the six
religions and three countries.***



ACQUISITION OF CITIZENSHIP

4 CITIZENSHIP BY NATURALIZATION

- e That he is of good character.
- f That he has an adequate knowledge of a language specified in the Eighth Schedule to the Constitution and
- g That in the event of a certificate of naturalization being granted to him, he intends to reside in India, or to enter into or continue in, service under a Government in India or under an international organization of which India is a member or under a society, company or body of persons established in India



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ACQUISITION OF CITIZENSHIP

4 CITIZENSHIP BY NATURALIZATION



MOTHER TERESA

2 However, the Government of India may waive all or any of the above conditions for naturalization in the case of person who has rendered distinguished service to the science, philosophy, art, literature, world peace or human progress.

3 Every naturalized citizen must take an oath of allegiance to the Constitution of India.

ACQUISITION OF CITIZENSHIP

4 CITIZENSHIP BY NATURALIZATION



Find out this famous herpetologist, known as “Snake man of India”, who became an Indian Citizen by Naturalisation and also find the organisations he is known for. He has also got a Padma Shri award, the Whitley award (UK conservation award), etc.

ACQUISITION OF CITIZENSHIP

5 BY INCORPORATION OF TERRITORY

- If any foreign territory becomes a part of India, the Government of India specifies the persons who among the people of the territory shall be the citizens of India.
- Such persons become the citizens of India from the notified date.
- For example, when Pondicherry became a part of India, the Government of India issued the Citizenship (Pondicherry) Order, 1962, under the Citizenship Act, 1955.

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